

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3594

By: Lepak

AS INTRODUCED

An Act relating to the Governmental Tort Claims Act; amending 51 O.S. 2021, Section 152, as last amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025, Section 152), which relates to definitions; clarifying definition of occurrence; amending 51 O.S. 2021, Section 154, as amended by Section 2, Chapter 292, O.S.L. 2025 (51 O.S. Supp. 2025, Section 154), which relates to extent of liability; requiring court to award reasonable costs and expenses to a plaintiff in certain proceedings involving damage to property; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 51 O.S. 2021, Section 152, as last amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025, Section 152), is amended to read as follows:

Section 152. As used in The Governmental Tort Claims Act:

1. "Action" means a proceeding in a court of competent jurisdiction by which one party brings a suit against another;

2. "Agency" means any board, commission, committee, department or other instrumentality or entity designated to act in behalf of the state or a political subdivision;

1 3. "Charitable health care provider" means a person who is
2 licensed, certified, or otherwise authorized by the laws of this
3 state to administer health care in the ordinary course of business
4 or the practice of a profession and who provides care to a medically
5 indigent person, as defined in paragraph 9 of this section, with no
6 expectation of or acceptance of compensation of any kind;

7 4. "Claim" means any written demand presented by a claimant or
8 the claimant's authorized representative in accordance with The
9 Governmental Tort Claims Act to recover money from the state or
10 political subdivision as compensation for an act or omission of a
11 political subdivision or the state or an employee;

12 5. "Claimant" means the person or the person's authorized
13 representative who files notice of a claim in accordance with The
14 Governmental Tort Claims Act. Only the following persons and no
15 others may be claimants:

- 16 a. any person holding an interest in real or personal
17 property which suffers a loss, provided that the claim
18 of the person shall be aggregated with claims of all
19 other persons holding an interest in the property and
20 the claims of all other persons which are derivative
21 of the loss, and that multiple claimants shall be
22 considered a single claimant,
- 23 b. the individual actually involved in the accident or
24 occurrence who suffers a loss, provided that the

1 individual shall aggregate in the claim the losses of
2 all other persons which are derivative of the loss, or
3 c. in the case of death, an administrator, special
4 administrator or a personal representative who shall
5 aggregate in the claim all losses of all persons which
6 are derivative of the death;

7 6. "Community health care provider" means:

8 a. a health care provider who volunteers services at a
9 community health center that has been deemed by the
10 U.S. Department of Health and Human Services as a
11 federally qualified health center as defined by 42
12 U.S.C., Section 1396d(1)(2)(B),

13 b. a health provider who provides services to an
14 organization that has been deemed a federally
15 qualified look-alike community health center, and

16 c. a health care provider who provides services to a
17 community health center that has made application to
18 the U.S. Department of Health and Human Services for
19 approval and deeming as a federally qualified look-
20 alike community health center in compliance with
21 federal application guidance, and has received
22 comments from the U.S. Department of Health and Human
23 Services as to the status of such application with the
24 established intent of resubmitting a modified

1 application, or, if denied, a new application, no
2 later than six (6) months from the date of the
3 official notification from the U.S. Department of
4 Health and Human Services requiring resubmission of a
5 new application;

6 7. "Employee" means any person who is authorized to act in
7 behalf of a political subdivision or the state whether that person
8 is acting on a permanent or temporary basis, with or without being
9 compensated or on a full-time or part-time basis.

10 a. Employee also includes:

11 (1) all elected or appointed officers, members of
12 governing bodies and other persons designated to
13 act for an agency or political subdivision, but
14 the term does not mean a person or other legal
15 entity while acting in the capacity of an
16 independent contractor or an employee of an
17 independent contractor,

18 (2) from September 1, 1991, through June 30, 1996,
19 licensed physicians, licensed osteopathic
20 physicians and Certified Nurse-Midwives providing
21 prenatal, delivery or infant care services to
22 State Department of Health clients pursuant to a
23 contract entered into with the State Department
24 of Health in accordance with paragraph 3 of

1 subsection C of Section 1-106 of Title 63 of the
2 Oklahoma Statutes but only insofar as services
3 authorized by and in conformity with the terms of
4 the contract and the requirements of Section 1-
5 233 of Title 63 of the Oklahoma Statutes, and

6 (3) any volunteer, full-time or part-time firefighter
7 when performing duties for a fire department
8 provided for in subparagraph j of paragraph 12 of
9 this section.

10 b. For the purposes of The Governmental Tort Claims Act,
11 the following are employees of this state, regardless
12 of the place in this state where duties as employees
13 are performed:

- 14 (1) physicians acting in an administrative capacity,
15 (2) resident physicians and resident interns
16 participating in a graduate medical education
17 program of the University of Oklahoma Health
18 Sciences Center, the Oklahoma State University
19 College of Osteopathic Medicine, a public trust
20 created pursuant to Section 3224 of Title 63 of
21 the Oklahoma Statutes and any sole member not-
22 for-profit corporation of the public trust and
23 any sole member not-for-profit subsidiary of such
24

1 corporation, or the Department of Mental Health
2 and Substance Abuse Services,

3 (3) faculty members and staff of the University of
4 Oklahoma Health Sciences Center, the Oklahoma
5 State University College of Osteopathic Medicine,
6 or a public trust created pursuant to Section
7 3224 of Title 63 of the Oklahoma Statutes and any
8 sole member not-for-profit corporation of the
9 public trust and any sole member not-for-profit
10 subsidiary of such corporation, while engaged in
11 teaching duties,

12 (4) physicians who practice medicine or act in an
13 administrative capacity as an employee of an
14 agency of this state,

15 (5) physicians who provide medical care to inmates
16 pursuant to a contract with the Department of
17 Corrections,

18 (6) any person who is licensed to practice medicine
19 pursuant to Title 59 of the Oklahoma Statutes,
20 who is under an administrative professional
21 services contract with the Oklahoma Health Care
22 Authority under the auspices of the Oklahoma
23 Health Care Authority Chief Medical Officer, and
24 who is limited to performing administrative

1 duties such as professional guidance for medical
2 reviews, reimbursement rates, service
3 utilization, health care delivery and benefit
4 design for the Oklahoma Health Care Authority,
5 only while acting within the scope of such
6 contract,

7 (7) licensed medical professionals under contract
8 with city, county, or state entities who provide
9 medical care to inmates or detainees in the
10 custody or control of law enforcement agencies,

11 (8) licensed mental health professionals as defined
12 in Sections 1-103 and 5-502 of Title 43A of the
13 Oklahoma Statutes, who are conducting initial
14 examinations of individuals for the purpose of
15 determining whether an individual meets the
16 criteria for emergency detention as part of a
17 contract with the Department of Mental Health and
18 Substance Abuse Services, and

19 (9) licensed mental health professionals as defined
20 in Sections 1-103 and 5-502 of Title 43A of the
21 Oklahoma Statutes, who are providing mental
22 health or substance abuse treatment services
23 under a professional services contract with the
24 Department of Mental Health and Substance Abuse

1 Services and are providing such treatment
2 services at a state-operated facility.

3 Physician faculty members and physician staff of the
4 University of Oklahoma Health Sciences Center, the
5 Oklahoma State University College of Osteopathic
6 Medicine, or a public trust created pursuant to
7 Section 3224 of Title 63 of the Oklahoma Statutes and
8 any sole member not-for-profit corporation of the
9 public trust and any sole member not-for-profit
10 subsidiary of such corporation not acting in an
11 administrative capacity or engaged in teaching duties
12 are not employees or agents of the state.

13 c. For the purposes of The Governmental Tort Claims Act,
14 employee shall include independent contractors and
15 employees of independent contractors while actively
16 engaged in the transport of individuals in need of
17 initial assessment, emergency detention, or protective
18 custody as authorized by Section 1-110 of Title 43A of
19 the Oklahoma Statutes.

20 d. Except as provided in subparagraph b of this
21 paragraph, in no event shall the state be held liable
22 for the tortious conduct of any physician, resident
23 physician or intern while practicing medicine or
24 providing medical treatment to patients.

1 e. For purposes of The Governmental Tort Claims Act,
2 members of the state military forces on state active
3 duty orders or on Title 32 active duty orders are
4 employees of this state, regardless of the place,
5 within or outside this state, where their duties as
6 employees are performed;

7 8. "Loss" means death or injury to the body or rights of a
8 person or damage to real or personal property or rights therein;

9 9. "Medically indigent" means a person requiring medically
10 necessary hospital or other health care services for the person or
11 the dependents of the person who has no public or private third-
12 party coverage, and whose personal resources are insufficient to
13 provide for needed health care;

14 10. "Municipality" means any incorporated city or town, and all
15 institutions, agencies or instrumentalities of a municipality;

16 11. "Occurrence" means a loss arising out of an accident or
17 event or a continuous or repeated exposure to substantially the same
18 general harmful conditions. All losses arising out of an accident
19 or event or a continuous or repeated exposure to substantially the
20 same general harmful conditions shall be deemed to have arisen out
21 of one occurrence. For the purposes of determining accrual, a claim
22 based on a continuous, repeated, or ongoing accident, event, or
23 exposure shall not be deemed to have accrued until such accident,
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1 event, or exposure to substantially the same general harmful
2 conditions has ceased or been abated;

3 12. "Political subdivision" means:

4 a. a municipality,

5 b. a school district, including, but not limited to, a
6 technology center school district established pursuant
7 to Section 4410, 4411, 4420 or 4420.1 of Title 70 of
8 the Oklahoma Statutes, or a public library as defined
9 pursuant to Section 1-104 of Title 65 of the Oklahoma
10 Statutes,

11 c. a county,

12 d. a public trust where the sole beneficiary or
13 beneficiaries are a city, town, school district or
14 county. For purposes of The Governmental Tort Claims
15 Act, a public trust shall include:

16 (1) a municipal hospital created pursuant to Sections
17 30-101 through 30-109 of Title 11 of the Oklahoma
18 Statutes, a county hospital created pursuant to
19 Sections 781 through 796 of Title 19 of the
20 Oklahoma Statutes, or is created pursuant to a
21 joint agreement between such governing
22 authorities, that is operated for the public
23 benefit by a public trust created pursuant to
24 Sections 176 through 180.4 of Title 60 of the

Oklahoma Statutes and managed by a governing board appointed or elected by the municipality, county, or both, who exercises control of the hospital, subject to the approval of the governing body of the municipality, county, or both,

(2) a public trust created pursuant to Sections 176 through 180.4 of Title 60 of the Oklahoma Statutes after January 1, 2009, the primary purpose of which is to own, manage, or operate a public acute care hospital in this state that serves as a teaching hospital for a medical residency program provided by a college of osteopathic medicine and provides care to indigent persons, and

(3) a corporation in which all of the capital stock is owned, or a limited liability company in which all of the member interest is owned, by a public trust,

e. for the purposes of The Governmental Tort Claims Act only, a housing authority created pursuant to the provisions of the Oklahoma Housing Authorities Act,

f. for the purposes of The Governmental Tort Claims Act only, corporations organized not for profit pursuant

1 to the provisions of the Oklahoma General Corporation
2 Act for the primary purpose of developing and
3 providing rural water supply and sewage disposal
4 facilities to serve rural residents,

5 g. for the purposes of The Governmental Tort Claims Act
6 only, districts formed pursuant to the Rural Water,
7 Sewer, Gas and Solid Waste Management Districts Act,

8 h. for the purposes of The Governmental Tort Claims Act
9 only, master conservancy districts formed pursuant to
10 the Conservancy Act of Oklahoma,

11 i. for the purposes of The Governmental Tort Claims Act
12 only, a fire protection district created pursuant to
13 the provisions of Section 901.1 et seq. of Title 19 of
14 the Oklahoma Statutes,

15 j. for the purposes of The Governmental Tort Claims Act
16 only, a benevolent or charitable corporate volunteer
17 or full-time fire department for an unincorporated
18 area created pursuant to the provisions of Section 592
19 et seq. of Title 18 of the Oklahoma Statutes,

20 k. for purposes of The Governmental Tort Claims Act only,
21 an emergency services provider rendering services
22 pursuant to an existing contract between the emergency
23 services provider and the State Department of Health.
24 Provided, however, that the acquisition of commercial

1 liability insurance covering the activities of such
2 emergency services provider performed within this
3 state shall not operate as a waiver of any of the
4 limitations, immunities or defenses provided for
5 political subdivisions pursuant to the terms of The
6 Governmental Tort Claims Act,

7 1. for purposes of The Governmental Tort Claims Act only,
8 a conservation district created pursuant to the
9 provisions of the Conservation District Act,

10 m. for purposes of The Governmental Tort Claims Act,
11 districts formed pursuant to the Oklahoma Irrigation
12 District Act,

13 n. for purposes of The Governmental Tort Claims Act only,
14 any community action agency established pursuant to
15 Sections 5035 through 5040.1 of Title 74 of the
16 Oklahoma Statutes,

17 o. for purposes of The Governmental Tort Claims Act only,
18 any organization that is designated as a youth
19 services agency, pursuant to Section 2-7-306 of Title
20 10A of the Oklahoma Statutes,

21 p. for purposes of The Governmental Tort Claims Act only,
22 any judge presiding over a drug court, as defined by
23 Section 471.1 of Title 22 of the Oklahoma Statutes,
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- 1 q. for purposes of The Governmental Tort Claims Act only,
2 any child-placing agency licensed by this state to
3 place children in foster family homes,
- 4 r. for purposes of The Governmental Tort Claims Act only,
5 a circuit engineering district created pursuant to
6 Section 687.1 of Title 69 of the Oklahoma Statutes,
- 7 s. for purposes of The Governmental Tort Claims Act only,
8 a substate planning district, regional council of
9 government or other entity created pursuant to Section
10 1001 et seq. of Title 74 of the Oklahoma Statutes, and
- 11 t. for purposes of The Governmental Tort Claims Act only,
12 a regional transportation authority created pursuant
13 to Section 1370.7 of Title 68 of the Oklahoma Statutes
14 including its contract operator and any railroad
15 operating in interstate commerce that sells a property
16 interest or provides services to a regional
17 transportation authority or allows the authority to
18 use the property or tracks of the railroad for the
19 provision of public passenger rail service to the
20 extent claims against the contract operator or
21 railroad arise out of or are related to or in
22 connection with such property interest, services or
23 operation of the public passenger rail service.
24 Provided, the acquisition of commercial liability

1 insurance to cover the activities of the regional
2 transportation authority, contract operator or
3 railroad shall not operate as a waiver of any
4 liabilities, immunities or defenses provided pursuant
5 to the provisions of The Governmental Tort Claims Act,
6 and all their institutions, instrumentalities or agencies;

7 13. "Scope of employment" means performance by an employee
8 acting in good faith within the duties of the employee's office or
9 employment or of tasks lawfully assigned by a competent authority
10 including the operation or use of an agency vehicle or equipment
11 with actual or implied consent of the supervisor of the employee,
12 but shall not include corruption or fraud;

13 14. "State" means the State of Oklahoma or any office,
14 department, agency, authority, commission, board, institution,
15 hospital, college, university, public trust created pursuant to
16 Title 60 of the Oklahoma Statutes of which the State of Oklahoma is
17 the beneficiary, or other instrumentality thereof;

18 15. "State active duty" shall be defined in accordance with
19 Section 801 of Title 44 of the Oklahoma Statutes;

20 16. "State military forces" shall be defined in accordance with
21 Section 801 of Title 44 of the Oklahoma Statutes;

22 17. "Title 32 active duty" shall be defined in accordance with
23 Section 801 of Title 44 of the Oklahoma Statutes; and
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1 18. "Tort" means a legal wrong, independent of contract,
2 involving violation of a duty imposed by general law, statute, the
3 Oklahoma Constitution, or otherwise, resulting in a loss to any
4 person, association or corporation as the proximate result of an act
5 or omission of a political subdivision or the state or an employee
6 acting within the scope of employment; provided, however, a tort
7 shall not include a claim for inverse condemnation.

8 SECTION 2. AMENDATORY 51 O.S. 2021, Section 154, as
9 amended by Section 2, Chapter 292, O.S.L. 2025 (51 O.S. Supp. 2025,
10 Section 154), is amended to read as follows:

11 Section 154. A. The total liability of the state and its
12 political subdivisions on claims within the scope of The
13 Governmental Tort Claims Act, arising out of an accident or
14 occurrence happening after October 1, 1985, Section 151 et seq. of
15 this title, shall not exceed:

16 1. Twenty-five Thousand Dollars (\$25,000.00) for any claim or
17 to any claimant who has more than one claim for loss of property
18 arising out of a single act, accident, or occurrence;

19 2. Except as otherwise provided in this paragraph, One Hundred
20 Twenty-five Thousand Dollars (\$125,000.00) to any claimant for a
21 claim for any other loss arising out of a single act, accident, or
22 occurrence. The limit of liability for the state or any city or
23 county with a population of three hundred thousand (300,000) or more
24 according to the latest Federal Decennial Census, or a political

1 subdivision as defined in subparagraph s of paragraph 11 of Section
2 152 of this title, shall not exceed One Hundred Seventy-five
3 Thousand Dollars (\$175,000.00). Except however, the limits of the
4 liability for the University Hospitals and State Mental Health
5 Hospitals operated by the Department of Mental Health and Substance
6 Abuse Services for claims arising from medical negligence shall be
7 Two Hundred Thousand Dollars (\$200,000.00). For claims arising from
8 medical negligence by any licensed physician, osteopathic physician
9 or certified nurse-midwife rendering prenatal, delivery or infant
10 care services from September 1, 1991, through June 30, 1996,
11 pursuant to a contract authorized by subsection B of Section 1-106
12 of Title 63 of the Oklahoma Statutes and in conformity with the
13 requirements of Section 1-233 of Title 63 of the Oklahoma Statutes,
14 the limits of the liability shall be Two Hundred Thousand Dollars
15 (\$200,000.00); or

16 3. One Million Dollars (\$1,000,000.00) for any number of claims
17 arising out of a single occurrence or accident.

18 B. 1. Beginning on July 1, 2025, claims shall be allowed for
19 wrongful criminal felony conviction resulting in imprisonment if the
20 claimant has received a full pardon on the basis of a written
21 finding by the Governor of actual innocence for the crime for which
22 the claimant was sentenced or has been granted judicial relief
23 absolving the claimant of guilt on the basis of actual innocence of
24 the crime for which the claimant was sentenced. The Governor or the

1 court shall specifically state, in the pardon or order, the evidence
2 or basis on which the finding of actual innocence is based.

3 2. As used in paragraph 1 of this subsection, for a claimant to
4 recover based on "actual innocence", the individual must meet the
5 following criteria:

6 a. the individual was charged, by indictment or
7 information, with the commission of a public offense
8 classified as a felony,

9 b. the individual was sentenced to incarceration for a
10 term of imprisonment as a result of the conviction,

11 c. the individual was imprisoned solely on the basis of
12 the conviction for the offense, and

13 d. (1) in the case of a pardon, a determination was made
14 by either the Pardon and Parole Board or the
15 Governor that the offense for which the
16 individual was convicted, sentenced and
17 imprisoned, including any lesser offenses, was
18 not committed by the individual, or

19 (2) in the case of judicial relief, a court of
20 competent jurisdiction found by clear and
21 convincing evidence that the offense for which
22 the individual was convicted, sentenced and
23 imprisoned, including any lesser included
24 offenses, was not committed by the individual and

1 issued an order vacating, dismissing or reversing
2 the conviction and sentence and providing that no
3 further proceedings can be or will be held
4 against the individual on any facts and
5 circumstances alleged in the proceedings which
6 had resulted in the conviction.

7 3. A claimant shall not be entitled to compensation for any
8 part of a sentence in prison during which the claimant was also
9 serving a concurrent sentence for a crime not covered by this
10 subsection.

11 4. The total liability of the state and its political
12 subdivisions on any claim within the scope of The Governmental Tort
13 Claims Act arising out of wrongful criminal felony conviction
14 resulting in imprisonment shall be in an amount equal to Fifty
15 Thousand Dollars (\$50,000.00) multiplied by the number of years
16 served in prison, expressed as a fraction to reflect partial years.

17 5. In addition to the award of damages provided for in
18 paragraph 4 of this subsection, a claimant who served his or her
19 time on death row shall be entitled to receive supplemental
20 compensation in the amount of Fifty Thousand Dollars (\$50,000.00)
21 multiplied by the number of years the person served on death row,
22 expressed as a fraction to reflect partial years.

23 6. In addition to the award of damages provided for in
24 paragraph 4 of this subsection, a claimant who was released on

1 parole or released under conditions of probation shall be entitled
2 to receive supplemental compensation in the amount of Twenty-five
3 Thousand Dollars (\$25,000.00) multiplied by the number of years the
4 person was on parole or under probation, expressed as a fraction to
5 reflect partial years.

6 7. A claimant entitled to compensation under the provisions of
7 this subsection shall be entitled to an award of damages under this
8 subsection of One Million Dollars (\$1,000,000.00) or less shall be
9 paid to the claimant in a lump sum. If an award of damages under
10 this subsection exceeds One Million Dollars (\$1,000,000.00), then
11 One Million Dollars (\$1,000,000.00) of the award shall be paid to
12 the claimant in a lump sum and the remainder shall be paid annually
13 in equal payments over a period of three (3) years.

14 8. The provisions of this subsection shall apply to
15 exonerations occurring on and after July 1, 2025.

16 C. No award for damages in an action or any claim against the
17 state or a political subdivision shall include punitive or exemplary
18 damages.

19 D. When the amount awarded to or settled upon multiple
20 claimants exceeds the limitations of this section, any party may
21 apply to the district court which has jurisdiction of the cause to
22 apportion to each claimant the claimant's proper share of the total
23 amount as limited herein. The share apportioned to each claimant
24 shall be in the proportion that the ratio of the award or settlement

1 made to him or her bears to the aggregate awards and settlements for
2 all claims against the state or its political subdivisions arising
3 out of the occurrence. When the amount of the aggregate losses
4 presented by a single claimant exceeds the limits of paragraph 1 or
5 2 of subsection A of this section, each person suffering a loss
6 shall be entitled to that person's proportionate share.

7 E. The total liability of resident physicians and interns while
8 participating in a graduate medical education program of the
9 University of Oklahoma College of Medicine, its affiliated
10 institutions and the Oklahoma College of Osteopathic Medicine and
11 Surgery shall not exceed One Hundred Thousand Dollars (\$100,000.00).

12 F. The state or a political subdivision may petition the court
13 that all parties and actions arising out of a single accident or
14 occurrence shall be joined as provided by law, and upon order of the
15 court the proceedings upon good cause shown shall be continued for a
16 reasonable time or until such joinder has been completed. The state
17 or political subdivision shall be allowed to interplead in any
18 action which may impose on it any duty or liability pursuant to The
19 Governmental Tort Claims Act.

20 G. The liability of the state or political subdivision under
21 The Governmental Tort Claims Act shall be several from that of any
22 other person or entity, and the state or political subdivision shall
23 only be liable for that percentage of total damages that corresponds
24 to its percentage of total negligence. Nothing in this section

1 shall be construed as increasing the liability limits imposed on the
2 state or political subdivision under The Governmental Tort Claims
3 Act.

4 H. In proceedings under the Governmental Tort Claims Act
5 involving damage to property in which the judgment is rendered in
6 favor of the plaintiff and compensation is to be awarded to the
7 plaintiff, the court shall also award the plaintiff an additional
8 sum to reimburse the plaintiff for reasonable costs and expenses
9 including, but not limited to, reasonable attorney, appraisal, and
10 engineering fees actually incurred because of such proceeding.

11 SECTION 3. This act shall become effective November 1, 2026.

12 60-2-14290 AQH 12/15/25
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